

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH****CRWP-6634-2026****Date of Decision: June 03, 2026****SANJANA AND ANOTHER**

.....Petitioners

Versus

STATE OF PUNJAB AND OTHERS

.....Respondents

CORAM: HON'BLE MR. JUSTICE HARKESH MANUJA

Present: Mr. S.K. Choudhary, Advocate for the petitioners
(through video conferencing).

HARKESH MANUJA, J. (ORAL)

1. Present criminal writ petition has been filed under Article 226 of the Constitution of India for issuance of direction to the respondents No.1 to 3 so as to protect the life and liberty of the petitioners.

2. As per contents made in the petition along with the documents attached, it appears that both the petitioners are major and are stated to be in a "Live-in Relationship".

3. Notice of motion.

4. Mr. Gunjan Mehta, Addl. A.G. Punjab accepts notice on behalf of respondents No.1 to 3.

5. It has been contended that petitioner No.1 is in live-in-relationship out of her own free wish and will and without there being any threat at the hands of petitioner No.2. It has been further submitted that the petitioners are having continuous threat at the hands of respondent No.4 and 6 and in this regard they have already submitted representation dated 30.05.2026 (Annexure P-4) to respondent No.2-Superintendent of Police, Pathankot. It has also been contended that despite there being a continuous threat to the life and liberty of the petitioners, at the hands of

private respondents, the official respondents have failed to take any action in this regard.

6. Learned counsel for the petitioners also relies upon two decisions rendered by this Court in the case of “**Shilpa and another Vs. State of Punjab and others**” passed in CRWP-10101-2021 on 22.10.2021 and “**Pardeep Singh and another Vs. State of Haryana**” passed in CRWP No.4521 of 2021 (O&M) on 18.05.2021. The relevant paragraph No.6 from **Pardeep Singh and another's case (supra)** is reproduced as under for reference:-

“6. Let us examine the issue from another view-point. The Constitutional Courts grant protection to couples, who have married against the wishes of their respective parents. They seek protection of life and liberty from their parents and family members, who disapprove of the alliance. An identical situation exists where the couple has entered into a live-in- relationship. The only difference is that the relationship is not universally accepted. Would that make any difference? In my considered opinion, it would not. The couple fears for their safety from relatives in both situations and not from the society. They are thus, entitled to the same relief. No citizen can be permitted to take law in his own hands in a country governed by Rule of Law.”

7. Keeping in view the proposition of law laid down in the aforementioned cases and without expressing any opinion upon the relationship being maintained by the petitioners, however, considering their age, the present petition is disposed of with a direction to respondent No.2-Superintendent of Police, Pathankot to consider the representation dated 30.05.2026 (Annexure P-4) and assess the threat

perception to the petitioners and after considering the same, pass necessary directions to officer concerned in this regard.

8. Accordingly, the Criminal Writ Petition stands disposed of in the aforesaid manner.

9. Nothing construed herein shall be treated as an expression of opinion of the merits of the case.

10. However, it is clarified that this order shall not debar the State from proceedings against the petitioners, if involved in any other case.

03.06.2026

Tejwinder

(HARKESH MANUJA)
JUDGE

<i>Whether speaking/reasoned</i>	<i>Yes/No</i>
<i>Whether reportable</i>	<i>Yes/No</i>